UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF TEXAS
DALLAS DIVISION

MARIA ELENA RIVERA,
Plaintiff,

v.

ACME LOGISTICS, INC.,
Defendant.

Civil Action No. 3:26-cv-00871-N

COMPLAINT AND JURY DEMAND

Plaintiff Maria Elena Rivera ("Plaintiff"), by and through undersigned counsel, files this Complaint against Defendant Acme Logistics, Inc. ("Acme" or "Defendant") and alleges as follows.

NATURE OF THE ACTION

1. This is an action under Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000e et seq., to redress race discrimination and retaliation. Plaintiff was fired after she complained that Black and Hispanic warehouse associates were disciplined more harshly than white associates.

JURISDICTION AND VENUE

2. This Court has subject-matter jurisdiction under 28 U.S.C. §§ 1331 and 1343 and 42 U.S.C. § 2000e-5(f)(3). Venue is proper in the Northern District of Texas because the unlawful employment practices were committed in Dallas, Texas.

PARTIES

3. Plaintiff is an individual who resides at 4417 Willow Creek Lane, Plano, Texas 75024. Her date of birth is March 14, 1983. Her email address is maria.rivera83@examplemail.com and her telephone number is (214) 555-0142. Her Social Security number is 123-45-6789 and her Acme employee ID was EMP-48213.

4. Defendant Acme Logistics, Inc. is a Delaware corporation that operates a distribution center at 9100 Commerce Street, Dallas, Texas 75207 and employs more than 500 persons.

EXHAUSTION OF ADMINISTRATIVE REMEDIES

5. Plaintiff filed a timely charge of discrimination with the Equal Employment Opportunity Commission ("EEOC") on September 12, 2025. The EEOC issued a Notice of Right to Sue on February 10, 2026. Plaintiff files this action within ninety days of receipt of that notice.

FACTUAL ALLEGATIONS

6. Acme hired Plaintiff on June 7, 2021 as a warehouse associate. She was promoted to warehouse supervisor in 2023 and consistently received satisfactory or better performance reviews.

7. Ms. Rivera supervised a shift of approximately forty associates. Her direct manager was Gregory Haldane, the operations director.

8. Throughout early 2025, Mr. Haldane assigned the least desirable shifts to Black and Hispanic associates and issued written warnings to them for conduct that white associates were not disciplined for.

9. On May 19, 2025, Plaintiff complained in writing to Acme's Human Resources department that the discipline practices were racially discriminatory. She asked HR to investigate. Ms. Rivera received no response.

10. Within days of her complaint, Mr. Haldane removed Plaintiff from the shift-planning team, excluded her from supervisor meetings and placed her on a performance improvement plan for the first time in her career.

11. On July 22, 2025, Acme terminated Plaintiff's employment, citing alleged performance deficiencies. The stated reasons were pretextual and arose weeks after her protected complaint.

12. Acme did not discipline Mr. Haldane. Acme replaced Plaintiff with a white supervisor with less experience.

COUNT I - Retaliation in Violation of Title VII, 42 U.S.C. § 2000e-3(a)

13. Plaintiff incorporates the preceding paragraphs.

14. Plaintiff engaged in protected activity when she complained of race discrimination on May 19, 2025.

15. Acme took materially adverse action against Plaintiff, including her termination on July 22, 2025, and there is a causal connection between the protected activity and the adverse action.

COUNT II - Race Discrimination (Disparate Treatment) in Violation of Title VII, 42 U.S.C. § 2000e-2(a)

16. Plaintiff incorporates the preceding paragraphs.

17. Plaintiff is a member of a protected class, was qualified for her position, was terminated, and was replaced by a person outside her protected class.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests back pay, front pay, compensatory and punitive damages, attorneys' fees and costs, and all other relief the Court deems just.

JURY DEMAND

Plaintiff demands a trial by jury on all issues so triable.

Dated: March 9, 2026

Respectfully submitted,

/s/ Jordan A. Pellegrino
Jordan A. Pellegrino
Counsel for Plaintiff
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